

A Ravikumar Alias Thangavel vs Kavitha Alias Bhuvaneshwari on 19 January, 2011

Bench: K.L.Manjunath, H.G.Ramesh

VS,/0 p.S;EsAz.U .

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§'-/l.F.A.NO.9953[2008

IN" THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 19TH DAY OF JANUARY 2011

PRESENT

THE I-£0N'BLE MR. JUSTICE K.L.MANJUNATHg~----- f "

THE HON'BLE MR. JUSTICE li.'t;.'12Am3sH

Misceiianeous First ADI3e_al . 2 "

BETWEEN:

ARAVIKUMAR ALIAS THANGAVEL

S/O VKAYYASWAMY V

AGED ABOUT 36 YEARS

R/AT D.NO.1-484/1 -- V V

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KOTHWAL RAMAIAIfI1'x'».TF='.EE\$E' I , ~ j

MYSORE 570 001 H _ . _ ' ...APPELLAN'I'

[BY SR1 K.3é1A€JUN}«f:'H _V

AND: V ' ' "

KAVITHA ALIAS VfaHUaIA:\z1«f:S}.:}\vA,..{1

W/() A. RA;m<\$JMAR V-AND' '

AGED AfS0U'?I* 'BZVYEARS

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ERODE D-----IS'TRI (J'I'" ...RESPC)NDE)N'i'

" " 5 1 f{13i>* SR: V.B;SiDDARAMA1AH, Advoc:A'rE}

'<;'7Eiii:5 MFA ES FILED U/S 19(1) 0? FAMILY COURT ACT,

. _V ,.5:({}_AINSS'I' THE JUDGMENT AND AWARD DATED 12.08.2008
'PASSED IN MC.NO.E\$3/2005 ON THE FILE 0? JUDGE. FAMILY

QOEERTE", MYSORE, DISMISSING 'ITfE'l PETITEON FILED U/S 33.1

_ {1»{A), { :49} OF HINDU MARR1.A.GE ACT P- 'OR DISSOLU'1"ION OF
MARREA({}):"L.

{ :9

M.F.A.N . 3 2200

THIS MFA C0?»/IIE\2'G ON FOR HEARING. THIS DAY,
MANJUNATH J. DELIVERED THE FOLLOWING:

JUDGMENT

The unsuccessful. husband who has faileé to decree of divorce has filed this appeal H. legality and correctness of the judgr::1e11t.pa:\$se_e1"

Judge, Family Court, Mysore, . M.C.No.63/2005.

2. We have heard the counsel er péift~iesA\$

3. The facts of the ease The appellagatfiled ef divorce on the ground of .dese1ft1'_Q"I1t an_Ei'v...e1'-uelty. Aceorciing to the petition aVefl::ei1ts,' was solernnised between the parties '?;3,1'99A9 _Chenmmaiai, Tamilnadu. Thereaf1:e--f, they reS'iE3e\$si_____together as husband and Wife at V.Iv/Eysiextgé' wier_F period. The appellant/husband is eafryirteg O'11ffhe \$ju.,55iness at Mysore, Aecerd_i.ng to him, resép gmdent:}:wiI'e has deserted without any cause and ~.t.ttt'_j-iifiteeresperi□eiiit has treated the appeii.ant/husband with ertéfeityt she has failed to provide love and affection and ex M.F.A. |\iQ.9953[2Q£18 has faied to discharge her marital obligation. On these grounds, he □ed the pet.it,1'or1. The respondent/wife eon1e.es1'.ed the case. According to her, the appe11an'a_ the Wife to her parents' house on :_.

attending the marriage of her _relative_a1 _Kar1;r'a1r'id'_tfa'i1ed.V to take back the respondent: and wh._er1 ;'a11\$'at&ern;ji made by her to join the maérimodrn-.a1 home. refused to take her back. There_fo}*e, the res-porldeidt is made to leave in parents' };1C1.JV:r:'3e'fOI" aajjov t;a1.:;11;A:'of ____};1er. In order to prove their'*respective eont;e'11tions, in all, [I've Witnesses jéordi uidbdehalf of the appellant/:EaL1sb'anjd,;vV P.W.1 is the appellant and four otrie:j'''witnes&Se's--\$\$fere"eXamined as P.Ws.2 to 5. He re1ied'--v11por1uuE5gs;P'1 vP3(b). The respondent got V'e)<Ea:iiirneMd.Aas The trial court formulated the foi'ie--xx.}ir;-g fore its Consideraiior1:

the petitioner proves that {he ~-respondent used to cause unbearable AA gtrrieityie him'?

Whether the pemioner proves that ihe as?

respondent', has deserted his company for ex M.F.A. No.9953(2008 rrmre than the .<3tat.1.2tc>1y period without any reasonable cause or excuse'?

3. To what relief the parties are entitled?

After appreciating the evidence. point Nos.1 & against the appellant. Aeording□htt "the; dismissed. Chalienging the 1.ega11'Vty aI"lA:d.__C"t;ϕIf_1A'.€C1;I1.C!jS;'SA"C3lC V' same, the present appeal is filed. '

4. Though several g1*otjn--r:i:S arhe 'L21;rg.ed.VLtb3:f'the appellant in the appeal memo, sat t.he.ti:ne::'of "the learned counsel for the View of the V vs 'h is ir1*et1'ievabIy marriage between'~-- the p.arti'es;

broken, appetViéi'iz.t:'V-its'tehtéitled'fer grant of divorce. To support his ease," h.eVV'he1'e:re1_ie.s<i'upon the judgment of the Ii1Q11'b1e,E_§□3reme in: Naveen Kohii V. Neeiu Kohli 2066 -1£ 617,_ '5) According to him, since 1999, the VV11{?.i1ag""g§eJ;.>arate1y. Therefore, the appeilant is en.'é.irEed fer grah€t.efa decree of divorce. During the eouree 2;rg'u1r1erite, it is brought, to our rzotiee that the 1'eSpenrierrt':/wi_ie had fied :31 ;3eti.t.\$.or1 in H.l\/{.O.P.50/O5 };;efe'r*et the Ce:>1.1rt of Erode under Section 9 of the Hindu M.F.A.NG. S32 8 Marriage Act, 1955 for restiitmion of conjugal rights which _petit.ion Came to be allowed directing the appellant herein» to take back the respondent to the matrimonialVpphlernel□□'., Against the order passed, the appellant filed an C.l\fl.A.=~'l6/o7' before the District. J§1dAge;w£_il:ode, appeal came to be allowed and the rest□gitioxz conjugal rights has been dismissed?'-in Against respondent has filed a second appeahin VVCeA..M.S.A.V32/'\$008 before the High Court of SaLine'_i_s pending. Therefore, he req'u_esa-ts; the CA01,:1'rt'Vito-.al1ojyvVVt,hej'appeal.

5. Per Co--1*rtra_;l"thell':i§eaurr':epd-.eoui'isel":fo:' the respondent contends tl'i.at"l 1*elé§'p.olfl{lent has not treated the appellant withllierluetzs-_and'l velien the respondent has not d'e.sertled'~3'hefht1sband,.__qu;estion of granting a decree of di\ro'Toe"on g;rou.nd of desertion and Cruelty does not :l'<.__arise at "all. Vlzfiejorjrdiiig to him, the judgment relied upon lC_.by.the leaxfnd hvclouneel for the appellant Cannot be made to the facts of this case since {hie Court has no V' power§t.o exercise the power vested to the Supreme Court _n'i"i.dher Article .142 of the Const;itut'io:n of India. He further M.F.A.§\lQ.9953,f2Q£)8 contends that the said judgment, cannot be made applicable to the facts and cir<:urnstariees of this case since the appellant is responsible for the breaI«:down marriage as the respondent was always willing to--'.:iVev the appellant. He further contends' *thatl'_l appellant has deserted the respolldéililpt lleaxririg respondent: at her parents' marriage at Karur and wh--er1 rnladel the respondent to join the when the appellant was notready .:hef1'_«,. _htieisl,lV'lquestion of rnakirig wife does not arise at all; is proved, question of eonsideringl'--'fhe-- does not arise at all. Since the marriage-bet'». _jveen 'the

parties was solemnised on 'Z.V3.1999_{y2it eA.Tamil11a_dt1 and they lived only for a short period typsjidh□ithin few months thereafter the respondent l1aIsr._.blee;n;residi.;"igVr.alt;..her parents' house, on the ground of ' V'»,____desert;or;;; when'j_tl<lere was no allegation of cruelty during the short" sltiayllof the respondent with the appellant. 'qi,ie.,st:ien_ oi'\$ran1,i11.g a, decree of divorce on the ground of is :9- M.F.A. l\iQ.9953[2008, she would be taken back, when {he appellant. did not take her back, she made an atiempt to join the appellant. Accordingly, she returned to Mysore with her parents but the appellant did not allow her to enter into his house and. she was made to return to her parents' house for no-tai.i_li. of her. In addition to that, ii: is her speci□ caselv_'th.at...A.Sl1e has filed a second appeal in appeal is now pending before the High'--.{fc3irt oi.-Mladraslj':

Be that as it may. But ihe evidencelet. inllzyilie parties does not disclose that the""r_es1::onde'nt_V .on-..h_er has deserted the appellant. Excepi ._th.e_lself# 'ser{Eing~ testimony of the responden'tvl'.avndV3wher._parents, no other evidence is available onlreeoprdl. respondent is Willing to join the appetllantl when an attempt is made by her to lrestorelvthe relationship, this Court based on bald J .:x EV"? -§./ 2%".

3.lleGEl:l.'(-"l1pS"lllfhf□fi .there being cogent evidence earinet hold 5?.

Vlihat therespondeni. has deserted the appellant for more .Ai.x;i.rel\i*e.--_3:}'ears for no cause oi' the appellant. In the c:'ire-Lm_1si'.anees, we are of the opinion that point No.1 has Iijioa be; held against the appellant and in favour of the L . VA " T'e'sponde:nt.

gs', lV§.F.A.i\lO.9953[20o8

8. When we are hsldirig point No.1 in favour oi the respondent, the next question would be Whether the respondent has treated the appellant with cruelty. the respondent has not stayed with the appellaait 1999, question of treating the appellant; with not arise at all and there is no evideriee 7f: _ii"show_Athatjshle.._17-A has treated the appellant xtrith-,:eri_ielt3if;' observed by this Court that the. resp-endeht is residing separately since appellant to file a petition in after the alleged desert.i.-on' "ihere□s no explanation offered this regard. In the cirennistaneesi we are«i.Aefb_theopinion that the appellant has failed opts preVe""theV' ground of cruelty against the Haying the second point against the apipeli«a:itA, wfiat rem.ai'r1s is whether this Court can grant a : '1ecree~of clivsree on the grsund of marriage :irretrieval:>ly ..".A'E:irols:e:tp1. far as this point, is concerned, admittedly, there 'isno ground available to a spouse under Section 1.3

--t.l-re Hindu Marriage Act, 1955 to seek divorce an the ground that the marriage is irretrievably br::>l~:en but there r; 1 es»-"" _10m M.F.A. I\§o.9953g2008 is a move to incorporate the same as one of the grounds. But: when there is no amencrnt to the said section, Vth.i_s*. _ Court. has no power to grant the Elven othe1ji%iki'se.;_* " :_. the marriage is irretrievably broken on conduct of the appellant, We are of the Vi.ei2i% it ground cannot be exercised .a1,___ theh"

appellant. We can understand is requesting for E1 decree of the marriage is irretrievably Conduct of the appellant, 'Vt3his::\$\$urt" it. But the appellant. make it as a ground tom "tor no fault of the resportdenteh we do not see any merit in appeai'; ,AA(:Veore?_ingIy, the appeal is dismissed. \$552:

Eeésg t « . ; him